California AI Guidance: Data and Student Privacy Passages

Excerpted verbatim from *Guidance for the Safe and Effective Use of Artificial Intelligence in California Public Schools: Learning About AI to Learn with AI (California Department of Education)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text. The laws summary table on pages 36–39 and one table row on page 17 are transcribed from the rendered pages and marked [graphic]; each cell is given as its own block (Description, then Time-Sensitive Compliance Requirements). The guiding question that appears on page 34 (digital ethics) repeats the page 32 step and is quoted once.

Message from the State Superintendent of Public Instruction (excerpt)

Source: page 2

This guidance reflects our shared commitment to equity, student privacy, academic integrity, and human-centered learning.

Introduction (excerpt)

Source: page 3

While this document is guidance, the requirements set forth in federal and state law, including, but not limited to, the Family Educational Rights and Privacy Act (FERPA), the Children's Online Privacy Protection Act, and the California Education Code and Business and Professions Code are legal mandates that local educational agencies (LEAs) must follow regardless of this guidance.

Supporting Student Well-Being (excerpt)

Source: page 7

These technologies should be carefully vetted for emotional safety, privacy, and ethical use to protect student well-being and uphold parents' rights to access and review student records.

Risks of Human-Replacement AI (excerpt)

Source: page 9

… implementation of AI tools that outpaces policy, increasing risks such as lack of equity, inadequate data privacy protection, and misuse.

Guiding Questions for LEAs (excerpt)

Source: page 9

- How will we ensure compliance with local policy and state/federal laws related to data privacy, transparency, equity, and parental/student rights?

Professional Learning (excerpt)

Source: page 14

Centralized, vetted resources such as privacy guidance, approved tools, lesson plans, and curated training materials help schools innovate safely and avoid duplicating effort.

Sample AI Literacy Activity, Grade 10: Privacy risks of immutable data (excerpt)

Source: page 17 [graphic]

[graphic] Students act as “Data Guardians” for a hospital, rejecting a dataset for a research AI because it contains patients’ full DNA profiles linked to their home addresses, arguing that if this data is stolen, the patients can never change their DNA like they can change a password. NGSS HS-LS3-1

Guiding Question

[graphic] Why is a data leak involving your genetics much more dangerous than a data leak involving your credit card number?

Curriculum Alignment (excerpt)

Source: page 20

LEAs should comply with (student) data privacy laws and policies, cross-referenced in the Data Privacy, Security, and Procurement section.

Guiding Questions (excerpt)

Source: page 25

- How will confidential student information be protected when using AI tools?

Digital Citizenship (excerpt)

Source: page 30

Digital citizenship in the age of AI includes lessons on privacy, safety, and respectful online interaction, expanded to cover data footprints, consent, and the implications of sharing content, including student work, with AI systems.

Developing Ethical Use Policies (excerpt)

Source: page 32

Provide students with educational resources and discussions on digital ethics, covering topics like online privacy, cyberbullying, plagiarism, and responsible sharing.

Data Privacy: Data Privacy, Security, and Procurement

Source: page 35

The responsible use of AI in California's schools calls for alignment with student-centered values, robust privacy safeguards, and the broader educational mission of equity and trust in public education. While AI offers significant opportunities to personalize learning, improve accessibility, and streamline instruction, its adoption must be grounded in transparency, ethical use, and protection of student data and intellectual property. LEAs play a central role in reviewing and approving AI tools that meet security standards, ensuring educators remain at the heart of the learning process, and helping students and families understand how data is collected, used, and shared in all educational contexts, including AI. Protecting and securing the integrity of student data must be the integral foundation on which all decisions about using AI are made. By integrating AI in ways that reinforce California's commitment to safe, inclusive, and equitable learning environments, LEAs can strengthen, not replace, the essential role of teachers while maintaining the public's confidence in digital learning systems. The following outlines key principles and practical steps LEAs can take to ensure AI implementation remains policy aligned, transparent, and centered on student well-being.

Student-Centered, Policy-Aligned AI Use

Before adopting AI tools, LEAs must ensure alignment with local policies, California's goals for safe, inclusive learning, and state/federal laws related to data privacy, data use, and student/parental rights. Personally identifiable information (PII) should only ever be entered into closed AI systems since open AI systems do not contain the protections required to ensure that PII will be protected as required by law and best practice. Comprehensive, ongoing AI literacy training and resources should be offered to ensure that all members of the school community are transparently informed of their rights and responsibilities related to the use of AI tools.

Parent/Guardian and Eligible Student Rights and Student Records

AI tools collect and often store student-generated content (typed, spoken, or uploaded). This data is part of the student's educational record and, in accordance with state and federal law, can be accessed and (if found to be inaccurate) corrected by parents, guardians, and eligible students (i.e., students over 18 and college students under 18). When using AI tools, any data entered by the student that is captured and/or used to generate an output is included in information that can be accessed/corrected by parents and eligible students.

Summary of Laws That Impact AI Use: California Consumer Privacy Act (CCPA)

Source: page 36 [graphic]

[graphic] Below is a summary of the laws that impact AI use, policy, and parental/student rights.

Description

[graphic] This law and its amendments and rules include the right to know what data is being collected to train AI models and how data is being used/shared. The CCPA also includes the right to delete personal information/opt out of the sale or sharing of personal information, the right to nondiscrimination, the right to correct inaccurate data, and the right to limit disclosure of personal

information. CCPA prohibits the use of dark patterns (interface features that subvert/impair consumer's autonomy, decision-making, or choice), use of automated decision-making technologies (ADMT) without prenotification, and physically/biologically profiling (e.g., analysis of facial expressions or gestures to infer emotional state) to inform significant decisions (e.g., college admission, hiring, loan approval). CCPA further prohibits generation of deepfakes (i.e., manipulation of real images/audio to create fake content that is presented as authentic) and sharing the data of children (under 16) without parental consent. The CCPA can level fines against companies found to be in violation of the law.

Time-Sensitive Compliance Requirements

[graphic] Requests for access to personal data held by any business must be acknowledged within 15 days, and access to personal data must be granted within 45 days. Businesses can request a 45-day extension to comply with a request for access. Consumers who opt out of personal data collection cannot be asked to opt back in for at least one year.

Summary of Laws That Impact AI Use: Student Online Personal Information Protection Act (SOPIPA)

Source: pages 36–37 [graphic]

Description

[graphic] SOPIPA prohibits both use of student data for creating a profile of the student and use of student data to market to the student and/or their parent/guardian. These prohibitions extend to AI.

Time-Sensitive Compliance Requirements

[graphic] Because SOPIPA asserts that student data remains the property of the LEA, the eligible student, and their parent/guardian; LEAs are responsible for production of records in accordance with FERPA (i.e., parents/guardians and eligible students must be granted access to education records within 45 days of requesting such access.)

Summary of Laws That Impact AI Use: California Education Code Section 49073.1 (AB 1584)

Source: page 37 [graphic]

Description

[graphic] Passed as a companion to SOPIPA, AB 1584 requires contracts containing student data to include specific provisions to protect student data. Contracts without such provisions are null and void in California. In part, the law requires that vendors attest that data can only be collected and used for specific purposes outlined in the contract and requires vendors to affirm that data belongs to the student, their parent/guardian, and/or the school/district and cannot be retained by the vendor.

Time-Sensitive Compliance Requirements

[graphic] As with SOPIPA, Education Code Section 49073.1 asserts that student data remains the property of the LEA, the eligible student, and their parent/guardian; LEAs are responsible for production of records in accordance with FERPA (i.e., parents/guardians and eligible students must be granted access to education records within 45 days of requesting such access.)

Summary of Laws That Impact AI Use: California Business and Professions Code Section 22601 (Guardrails for Companion Chatbots)

Source: page 37 [graphic]

Description

[graphic] In accordance with Section 22601 of the Business and Professions Code (Senate Bill 243), to align with California law and ensure the emotional and psychological safety of minors, all AI companion chatbot services procured or utilized by the LEA must adhere to the requirements of the law. The law establishes specific safeguards for any generative AI system designed to simulate a human-like relationship with a user who is a minor.

[graphic] The law requires chatbot operators to implement crisis protocols and provide clear disclosures to the user reminding the user that they are interacting with AI and not a human. The law requires chatbot operators to provide content filtering and prohibits a chatbot from representing itself as a health care professional. Further, the law allows families to pursue legal action if the safeguards are violated.

Time-Sensitive Compliance Requirements

[graphic] Beginning January 1, 2026, any LEA using chatbots must prepare and submit an annual compliance report to the California Department of Public Health. The first annual report is due no later than July 1, 2027.

Summary of Laws That Impact AI Use: Family Educational Rights and Privacy Act (FERPA)

Source: page 38 [graphic]

Description

[graphic] FERPA prohibits both the release and rerelease of personally identifiable student data unless very nuanced, legally complex conditions are met. This is especially pertinent when using open AI tools since data imputed into open AI is reshared to train the AI model. This resharing of data is a violation of FERPA, meaning that personally identifiable student information should never be shared outside of a closed system without parental/eligible student consent. All student information used in open AI systems should be anonymized to prevent a violation of FERPA.

[graphic] Further, FERPA grants parents/guardians and eligible students (those over 18 or attending postsecondary institutions) rights to inspect (within 45 days of requesting) and amend records that are found to be inaccurate. FERPA also allows parents/guardians and eligible students to request a hearing to correct records. Schools/districts can be fined by the US Department of Education for noncompliance.

Time-Sensitive Compliance Requirements

[graphic] FERPA requires that parents/guardians and eligible students be allowed access to inspect and amend education records within 45 days of submitting such a request.

Summary of Laws That Impact AI Use: Children's Online Privacy Protection Act (COPPA)

Source: pages 38–39 [graphic]

Description

[graphic] COPPA limits data collection from children under 13 and requires apps, social media companies, and others to obtain parental consent prior to collection of personal information from children under 13.

Time-Sensitive Compliance Requirements

[graphic] COPPA requires that data be retained only long enough to provide the service that has been requested/consented by the parent/guardian. For educational purposes, LEAs are allowed to provide consent for students to use a tool/service in an educational setting. In this instance, any data collected or records maintained are education records under FERPA and—while they should be deleted once the service is no longer used in the educational context—access to inspect/amend must be granted to parents/guardians and eligible students within 45 days.

Summary of Laws That Impact AI Use: Protection of Pupil Rights Amendment (PPRA)

Source: page 39 [graphic]

Description

[graphic] The PPRA requires parental consent prior to the administration of surveys that collect student information on political affiliations/beliefs, mental or psychological health, sex behavior/attitudes, illegal/self-incriminating or demeaning behavior, critical appraisals of close family relations, legally recognized privileged information, and family income not related to eligibility for participation in a program. Because AI tools can be used to infer affiliations and beliefs, surveys in a school context should employ only closed AI tools if using AI at all.

Time-Sensitive Compliance Requirements

[graphic] FERPA protections and access requirements (i.e., parents/guardians and eligible students must be granted access within 45 days of request) apply to any student-level information collected through surveys administered by an LEA. When surveys contain topics articulated in the PPRA, LEAs must receive explicit parental consent prior to the administration of such surveys.

Local Educational Agency Action Steps

Source: page 40

In addition to reviewing platforms and tech tools for AI features that would violate state and federal law, it is also important to practice data minimization (i.e., collecting and managing only student data that is essential to providing educational services). LEAs are also encouraged to establish data governance (i.e., formalized processes to document, protect, and manage data) and ensure transparency. This includes an annually required FERPA notification to parents regarding what data the LEA considers “directory information” (i.e., information generally shared with the school community through publications like a yearbook) so that parents can opt out of the public sharing of directory information if they choose to do so. Processes for evaluating and monitoring compliance are also important to maintain good standing with existing laws/best practices and new laws/best practices in an evolving AI landscape.

To ensure legal compliance and student safety, school IT support is encouraged to block unapproved features, enforce secure data transmission, and scan for vulnerabilities. LEAs are also encouraged to institute processes and systems for regularly auditing, updating, and testing policies and breach readiness. Publishing audit findings is recommended to bolster community confidence. To foster a culture of privacy and digital literacy, in addition to regular training sessions and resources LEAs can consider offline or locally hosted platforms for sensitive data and provide regular opportunities for all members of the school community to share feedback on AI use.

Guiding Questions for LEAs: 3. Data Privacy & Security

Source: page 41

- Does the tool comply with federal and state privacy laws (FERPA, COPPA, state student data privacy regulations)?
- What student or staff data is collected, stored, or inferred?
- Does the vendor use personal data to train or improve its AI models?
- Are data retention, deletion, and access policies clearly defined?
- Has the district reviewed the vendor’s security practices, encryption standards, and breach response procedures?
- Is a signed Data Privacy Agreement (DPA) required and available?
- Do AI chatbots that the LEA procures or develops meet the compliance requirements of SB 243?

Appendix, Glossary (excerpt)

Source: page 43

Data Privacy

The right of individuals to control how their personal information is collected, stored, shared, and used. In education, data privacy ensures that student and educator information is handled ethically and in compliance with laws such as FERPA and COPPA.

Digital Citizenship

… Digital citizenship promotes respectful communication, privacy protection, and ethical participation in online spaces.

Appendix, Glossary: Open/Closed AI Systems (excerpt)

Source: pages 44–45

Closed AI systems are trained on restricted or curated datasets and are designed for a specific purpose within a defined environment—such as assessment tools, learning management systems, or district-approved applications. They include guardrails and

content controls to limit risk, operate within known parameters, and may store data locally or in protected ecosystems. These systems offer greater consistency and privacy but are less flexible for open-ended use.